

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202003171	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 05/02/2020 8:15 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 73		
Date/Time CV Reported Sat, 05/02/2020 9:09 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/11/2020 11:32 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Alexander Bobo	00000	947985	073 PCT
2. SGT Michael Nocerino	00491	937192	073 PCT
3. SGT Christopher Musa	03353	952040	073 PCT
4. POM Luis Fernandez	22932	953854	073 PCT
5. POM Louis Aponte	07454	957850	073 PCT
6. Officers			
7. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Aleksandr Chekalin	17067	966501	073 PCT
2. PO Evrett Kerr	28828	967139	073 PCT
3. POM Stephen Rice	02527	964238	073 PCT
4. POM Matthew Bottcher	21926	962266	073 PCT
5. POM Christophe Kalinowski	22920	962515	073 PCT
6. POM Keith Stark	03636	961325	073 PCT
7. POF Lashonda Porterfield	02813	963699	073 PCT
8. CPT Derby Stfort	00000	937848	073 PCT
9. PO Vincent Biscardi	19500	967776	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b)	A . Officer(s) Unidentified
B . SGT Michael Nocerino	Force: Sergeant Michael Nocerino used physical force against § 87(2)(b)	B . Exonerated
C . SGT Christopher Musa	Force: Sergeant Christopher Musa used physical force against § 87(2)(b)	C . Exonerated
D . LT Alexander Bobo	Abuse: Lieutenant Alexander Bobo threatened § 87(2)(b) with the use of force.	D . Exonerated

Officer(s)	Allegation	Investigator Recommendation
E . LT Alexander Bobo	Abuse: Lieutenant Alexander Bobo interfered with § 87(2)(b)'s use of a recording device.	E . Exonerated
F . LT Alexander Bobo	Force: Lieutenant Alexander Bobo used physical force against § 87(2)(b)	F . Exonerated
G . SGT Christopher Musa	Abuse: Sergeant Christopher Musa threatened § 87(2)(b) with the use of force.	G . Exonerated
H . An officer	Force: An officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	I . Officer(s) Unidentified
J . SGT Christopher Musa	Discourtesy: Sergeant Christopher Musa spoke discourteously to § 87(2)(b)	J . Substantiated
K . POM Louis Aponte	Force: Police Officer Louis Aponte used physical force against § 87(2)(b)	K . Exonerated
L . LT Alexander Bobo	Force: Lieutenant Alexander Bobo used physical force against § 87(2)(b)	L . Exonerated
M . Officers	Abuse: Officers refused to provide their names to an individual.	M . Alleged Victim Unavailable
N . Officers	Abuse: Officers refused to provide their shield numbers to an individual.	N . Alleged Victim Unavailable
§ 87(4-b), § 87(2)(g)	[REDACTED]	[REDACTED]
§ 87(4-b), § 87(2)(g)	[REDACTED]	[REDACTED]

Case Summary

On May 2, 2020, two individuals, an anonymous female and § 87(2)(b) separately filed this complaint with IAB by phone. It was received at the CCRB on May 11, 2020, under IAB log #2020-11711.

On May 2, 2020, at approximately 8:15 p.m., § 87(2)(b) was standing in the doorway to her apartment building located at § 87(2)(b) in Brooklyn talking to her brother, § 87(2)(b) and her boyfriend, § 87(2)(b). Numerous officers were outside including Sgt. Michael Nocerino, Sgt. Christopher Musa, PO Luis Fernandez, PO Aleksandr Chekalin, PO Matthew Botcher, PO Keith Stark, PO Everett Kerr, PO Stephen Rice, PO Vincent Biscardi, PO Christopher Kalinowski, PO Lashonda Porterfield, PO Louis Aponte, Lieutenant Alexander Bobo, and Captain Derby Stfort of the 73rd Precinct. Officers allegedly picked up § 87(2)(b) a resident of § 87(2)(b) out of a chair on the sidewalk and handcuffed him (**Allegation A: Force, § 87(2)(g)**).

Sgt. Nocerino approached § 87(2)(b) who was standing on the sidewalk with an empty cup in his hand. Sgt. Nocerino asked § 87(2)(b) for his ID numerous times and § 87(2)(b) refused to provide it. Sgt. Nocerino then grabbed § 87(2)(b) and pushed him toward Sgt. Musa who assisted in taking § 87(2)(b) to the ground (**Allegations B and C: Force, § 87(2)(g)**).

§ 87(2)(b) began recording the incident and proceeded to yell at the officers in the general vicinity. Several minutes later, Lieutenant Bobo approached the steps of § 87(2)(b) and lunged toward § 87(2)(b) as she was recording (**Allegations D and E: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) put himself in-between § 87(2)(b) and Lieutenant Bobo and Lieutenant Bobo grabbed § 87(2)(b) and took him to the ground (**Allegation F: Force, § 87(2)(g)**). As Lieutenant Bobo was struggling to take § 87(2)(b) to the ground, Sgt. Musa pointed his taser at § 87(2)(b) with the warning light engaged (**Allegation G: Abuse of Authority, § 87(2)(g)**).

When § 87(2)(b) hit the ground, an unidentified officer allegedly put his knee behind § 87(2)(b)'s neck, grabbed his head, and deliberately slammed it into the ground two times (**Allegation H: Force, § 87(2)(g)**). While this was happening, an unidentified officer said, "I don't give a fuck who you are, motherfucker" (**Allegation I: Discourtesy, § 87(2)(g)**). Sgt. Musa went to § 87(2)(b) to assist and said, "Never put your fucking hands on one of us" (**Allegation J: Discourtesy, § 87(2)(g)**). § 87(2)(b) attempted to enter § 87(2)(b) and was grabbed by PO Aponte and Lieutenant Bobo and placed into handcuffs (**Allegations K and L: Force, § 87(2)(g)**).

The anonymous female complainant then came outside and asked officers for their names and shield numbers which she did not receive (**Allegations M and N: Abuse of Authority, § 87(2)(g)**).

§ 87(4-b) § 87(2)(g)

This incident resulted in § 87(2)(b)'s and § 87(2)(b)'s sealed arrests. § 87(2)(b) received a summons for § 87(2)(b), and § 87(2)(b) received a summons for § 87(2)(b).

The investigation obtained 19 body-worn camera videos (**BR 01, BR 02, BR 03, BR 04, BR 05, BR 06, BR 07, BR 08, BR 09, BR 10, BR 11, BR 12, BR 13, BR 14, BR 15, BR 16, BR 17, BR 18, BR 19; videos, BR 20, BR 21, BR 22, BR 23, BR 24, BR 25, BR 26, BR 27, BR 28, BR 29, BR 30, BR 31, BR 32, BR 33, BR 34; summaries**) and three cell phone videos (**BR 35, BR 36, BR 37; videos, BR 38; summaries**). Relevant sections are discussed below.

Findings and Recommendations

Allegation (A) Force: Officers used physical force against § 87(2)(b)

It was undisputed that PO Kerr issued § 87(2)(b) a summons § 87(2)(b) for § 87(2)(b) (BR 39).

§ 87(2)(b) was advised by his attorney not to provide a statement (BR 40).

§ 87(2)(b) stated (BR 41) that § 87(2)(b) was visiting the house directly across the street. § 87(2)(b) was sitting in a chair in the driveway. Officers grabbed § 87(2)(b) and picked him up out of the chair. § 87(2)(b) was unable to hear any conversation between him and the officers.

PO Kerr stated (BR 42) that he was instructed by Lieutenant Bobo to issue § 87(2)(b) his summons later that night at the stationhouse and he did not witness the violation himself nor was he at the incident location.

Lieutenant Bobo (BR 43), Sgt. Nocerino (BR 44), PO Aponte (BR 45), and PO Fernandez (BR 46) consistently stated that they did not remember seeing any officer grab any individual out of a chair during this incident.

None of the body-worn camera videos or cellphone videos captured officers grabbing § 87(2)(b) out of a chair and placing him into handcuffs.

§ 87(2)(g)

Allegation (B) Force: Sergeant Michael Nocerino used physical force against § 87(2)(b)

Allegation (C) Force: Sergeant Christopher Musa used physical force against § 87(2)(b)

It was undisputed that § 87(2)(b) refused to provide his ID, was taken to the ground, and was arrested.

§ 87(2)(b) did not cooperate with providing a statement (BR 47).

§ 87(2)(b) consistently stated (BR 48 and BR 41) that § 87(2)(b) was near § 87(2)(b)'s vehicle when an officer said, "What's in your cup?" § 87(2)(b) stated that there was nothing in the cup and showed them that it was empty. Officers instructed § 87(2)(b) to leave while pushing him up against § 87(2)(b)'s vehicle. Officers then grabbed § 87(2)(b) by his face. § 87(2)(b) told the officers that they were on his vehicle and officers told § 87(2)(b) to shut up. In her original statement to IAB (BR 48), § 87(2)(b) stated that § 87(2)(b) was tased, however, in her CCRB statement, § 87(2)(b) only stated that her brother was tased.

§ 87(2)(b) stated (BR 49) that an officer grabbed § 87(2)(b) and slammed him onto his vehicle. § 87(2)(b) said, "Hey, what the fuck are you doing, that's my car." The officers told § 87(2)(b) to shut up and mind his business.

Sgt. Nocerino stated (BR 44) that he observed individuals drinking alcohol in the vicinity of § 87(2)(b). Sgt. Nocerino observed § 87(2)(b) drinking a brown substance out of a clear Solo cup. When Sgt. Nocerino approached, § 87(2)(b) smelled like alcohol. Sgt. Nocerino asked § 87(2)(b) for his ID numerous times and he verbally refused to provide it. Sgt. Nocerino made the decision to arrest § 87(2)(b) and turned him around. Sgt. Nocerino did not verbally instruct § 87(2)(b) to put his hands behind his back. § 87(2)(b) turned back around and faced Sgt. Nocerino. § 87(2)(b) resisted by refusing to place his hands behind his back and kicking his legs. § 87(2)(b) did not kick Sgt. Nocerino. PO Fernandez assisted Sgt. Nocerino in taking § 87(2)(b) to the ground. Sgt. Nocerino and PO Fernandez guided § 87(2)(b) to the ground. Sgt. Nocerino wanted to get § 87(2)(b) into custody as safely as possible without any of his officers getting injured. There were multiple people yelling at officers. Sgt. Nocerino placed § 87(2)(b) in handcuffs.

Sgt. Nocerino escorted § 87(2)(b) to a police vehicle to be taken to the stationhouse. § 87(2)(b) was placed in the vehicle. Sgt. Nocerino did not remember whether § 87(2)(b) resisted getting into the vehicle. During his interview, Sgt. Nocerino's body-worn camera footage (BR 07; video, BR 34; summary) was shown from 2:18 minutes to 2:32 minutes and Sgt. Nocerino explained that § 87(2)(b) just did not want to get into the police vehicle. § 87(2)(b) tried to get out of the vehicle, so Sgt. Nocerino pushed him back into the vehicle and closed the door.

Sgt Musa did not independently recollect assisting Sgt. Musa in taking § 87(2)(b) into custody (**BR 50**). During his interview Sgt. Musa's body-worn camera (**BR 04; video, BR 32; summary**) was played from 00:28 seconds to 1:00 minute. This video did not assist Sgt. Musa's independent recollection regarding taking § 87(2)(b) into custody. Sgt. Musa could not make out what he was doing in the video to assist in taking § 87(2)(b) into custody.

PO Fernandez stated (**BR 46**) that when he arrived at § 87(2)(b) he walked up the block and saw Sgt. Nocerino having an interaction with § 87(2)(b) on the southeast side of the street. PO Fernandez did not recall how many people § 87(2)(b) was standing with. Sgt. Nocerino asked § 87(2)(b) for his ID several times. PO Fernandez did not recall whether § 87(2)(b) verbally refused to provide his ID. § 87(2)(b) had been drinking and PO Fernandez could smell the alcohol and there were bottles on the street. PO Fernandez did not recall whether there were other factors that led him to believe that § 87(2)(b) was drinking. PO Fernandez did not recall whether § 87(2)(b) was holding a cup.

Sgt. Nocerino informed § 87(2)(b) that he was under arrest and a short scuffle ensued. § 87(2)(b) was refusing to give his hands. PO Fernandez did not recall whether he assisted in taking § 87(2)(b) to the ground. PO Fernandez was not sure how § 87(2)(b) ended up on the ground. PO Fernandez did not recall whether § 87(2)(b) was kicking on the ground. § 87(2)(b) was on his chest and kept his arms tight to his stomach. PO Fernandez and Sgt. Nocerino told § 87(2)(b) to put his hands behind his back multiple times. PO Fernandez helped Sgt. Nocerino put § 87(2)(b) in handcuffs. PO Fernandez then walked § 87(2)(b) to the vehicle and put him in the back seat. PO Fernandez did not remember whether there were any issues getting § 87(2)(b) into the police vehicle.

Lieutenant Bobo stated (**BR 43**) he did not have any independent recollection of § 87(2)(b).

§ 87(2)(b)'s arrest (#§ 87(2)(b)) was sealed (**BR 51**).

TRI #§ 87(2)(b) (**BR 52**) was displayed during Sgt. Nocerino's interview. Sgt. Nocerino explained (**BR 44**) that the actions taken to overcome resistance or aggression, in defense of self, referred to when he turned § 87(2)(b) around and § 87(2)(b) turned himself back around to face Sgt. Nocerino because Sgt. Nocerino did not want to get punched in the face. Additionally, when they brought § 87(2)(b) to the ground he was kicking. The TRI shows that there were no reported injuries.

TRI § 87(2)(b) (**BR 53**) was displayed during PO Fernandez's interview. PO Fernandez explained (**BR 46**) that § 87(2)(b) was using his hands to shove Sgt. Nocerino off of him. PO Fernandez did not recall whether § 87(2)(b) shoved him.

Sgt. Nocerino's body-worn camera (**BR 02; video, BR 34; summary**) shows Sgt. Nocerino approaching § 87(2)(b). § 87(2)(b) leans against a vehicle and is holding a clear cup in his left hand. At 00:33 seconds, Sgt. Nocerino says, "You're drinking, you have ID." § 87(2)(b) says, "There is nothing in this cup, I just poured it out." Sgt. Nocerino asks § 87(2)(b) for his ID six more times and § 87(2)(b) says, "No I'm not giving you my ID." Sgt. Nocerino says, "No? Turn around," then appears to grab § 87(2)(b)'s left arm. The video goes dark due to Sgt. Nocerino's camera being too close to § 87(2)(b) and then § 87(2)(b) is shown on the ground and the video ends.

Sgt. Musa's body-worn camera (**BR 04; video, BR 32; summary**) shows at 00:35 seconds, Sgt. Nocerino grabs § 87(2)(b)'s right bicep and appears to try to turn § 87(2)(b) around. § 87(2)(b) appears to tense his shoulder and does not turn around. Sgt. Nocerino places his arm on the back of § 87(2)(b)'s shoulders near his neck and then pushes him toward Sgt. Musa. Sgt. Musa grabs § 87(2)(b)'s right arm as he goes to the ground.

PO Fernandez's body-worn camera (**BR 06; video, BR 22; summary**) shows at 00:26 seconds, Sgt. Musa grabs § 87(2)(b) and is then pushed toward Sgt. Nocerino and the video ends.

§ 87(2)(g)

§ 87(2)(g)

NYC Administrative Code § 10-125 (b) (BR 54) states that no person shall drink or consume and alcoholic beverage, or possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place.

Patrol Guide procedure 209-03 (**BR 55**) states that when issuing a Civil Summons Returnable to the Office of Administrative Trials and Hearings (OATH), which includes open container, NYC Administrative Code § 10-125 (b), officers are to request proof of identity and if a violator does not possess a valid form of identification, they are to be removed to the command.

Patrol Guide procedure 221-01 (**BR 56**) states that force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject's violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

§ 87(2)(g)

Allegation (D) Abuse of Authority: Lieutenant Alexander Bobo threatened § 87(2)(b) with the use of force.

Allegation (E) Abuse of Authority: Lieutenant Alexander Bobo interfered with § 87(2)(b)'s use of a recording device.

It was undisputed that § 87(2)(b) was speaking loudly while recording officers with her cellphone from the front steps of her residence, § 87(2)(b)

§ 87(2)(b) stated (**BR 48** and **BR 41**) that she began yelling at the officers about discrepancies between how they were policing Central Park and her neighborhood. Lieutenant Bobo and two additional officers lunged toward § 87(2)(b). Lieutenant Bobo's fingers almost touched § 87(2)(b) and § 87(2)(b) were standing on the three steps leading up to § 87(2)(b)'s building. § 87(2)(b) stepped backward and closed the door to her building as Lieutenant Bobo reached out his hand toward her. § 87(2)(b) and § 87(2)(b) were positioned in front of § 87(2)(b)'s doorway which prevented Lieutenant Bobo from getting to § 87(2)(b)

§ 87(2)(b) stated (**BR 57**) that there were 20 officers in the vicinity. § 87(2)(b)'s sister, § 87(2)(b) was standing in the doorway of her building, § 87(2)(b) recording with her cellphone. § 87(2)(b) yelled at the officers and said, "What you're doing is wrong. Why are you doing this to this young man? Where's my brother?" § 87(2)(b) went over to § 87(2)(b) and said, "Calm down, be quiet." § 87(2)(b) replied, "No I have freedom of speech, they're coming around here and harassing people." § 87(2)(b) was standing in the crack of the doorway to her residence. § 87(2)(b) turned around, faced away from § 87(2)(b) and slouched while § 87(2)(b) continued speaking. § 87(2)(b) was situated on the right side of § 87(2)(b)'s entrance. § 87(2)(b)'s boyfriend, § 87(2)(b) was standing approximately six feet to § 87(2)(b)'s right. § 87(2)(b) may have been speaking as well, but § 87(2)(b) did not remember.

Officers formed a line in front of the building. Lieutenant Bobo pointed at § 87(2)(b) and six to eight officers charged forward as if to grab § 87(2)(b) out of doorway. The officers had to go through § 87(2)(b) to get to § 87(2)(b). Lieutenant Bobo ran into § 87(2)(b)

§ 87(2)(b) stated (BR 49) that his girlfriend, § 87(2)(b) was watching from the doorway of her building located at § 87(2)(b). § 87(2)(b) said, “You wouldn’t be doing this in other neighborhoods,” to the police officers. An officer did not like what § 87(2)(b) was saying and charged at her. § 87(2)(b) pushed § 87(2)(b) inside of her building and § 87(2)(b) closed the door.

Lieutenant Bobo stated (BR 43) that there were eight other officers from his command at the location when he arrived. He did not remember which officers were there. There was a disorderly crowd of eight to nine people drinking, playing loud music, cursing, and causing a disturbance. Lieutenant Bobo observed two large bottles of Hennessy, one out in the open and one halfway displayed out of a plastic bag. People were holding clear cups with brown liquid inside.

§ 87(2)(b) had a bottle of Hennessy nearby and a cup of liquor in her hand. § 87(2)(b) was loud, antagonizing the group, and saying the officers were harassing them. Lieutenant Bobo did not recall § 87(2)(b) saying anything threatening. Lieutenant Bobo intended on summoning § 87(2)(b) for the cup of alcohol in her hand. Lieutenant Bobo went to approach her, and § 87(2)(b) got in-between § 87(2)(b) and Lieutenant Bobo. Lieutenant Bobo did not speak with any officers regarding his decision to approach § 87(2)(b). Other officers approached § 87(2)(b) with Lieutenant Bobo, but he did not recall who. § 87(2)(b) went to push Lieutenant Bobo and § 87(2)(b) went inside of the building. § 87(2)(b) appeared to begin recording from inside of the apartment building. Lieutenant Bobo did not see her recording prior to this while she was still outside.

PO Aponte’s body-worn camera footage (BR 05; video, BR 25; summary) shows that starting at 00:30 seconds, when the audio begins, § 87(2)(b) is yelling at the officers. Officers begin to arrest § 87(2)(b) and § 87(2)(b) says, “Shoot the cop, shoot the fucking cops.” From 1:30 minutes to 4:25 minutes, § 87(2)(b) continues to yell profanities and appears to be holding her cellphone recording. At 3:25 minutes a male begins repeating § 87(2)(b) from offscreen shouting the word, “televised.” At 4:12 minutes, § 87(2)(b) says, “See if y’all make it back to Long Island and Queens [...] fucking come for your houses, see if you make it back.” At 4:22 minutes, an officer says, “She’s going,” as Lieutenant Bobo approaches the steps to § 87(2)(b). PO Aponte follows Lieutenant Bobo, and the screen goes dark for a moment as PO Aponte’s camera is obstructed by § 87(2)(b). The door to § 87(2)(b) is then shut and § 87(2)(b) is no longer outside.

New York State Penal Law § 240.20 (BR 58) states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, engages in threatening behavior, makes unreasonable noise, and uses obscene language.

Patrol Guide procedure 221-01 (BR 56) states that force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject’s violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

§ 87(2)(g)

Allegation (F) Force: Lieutenant Alexander Bobo used physical force against § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Christopher Musa threatened § 87(2)(b) with the use of force.

Allegation (H) Force: An officer used physical force against § 87(2)(b)

Allegation (I) Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation (J) Discourtesy: Sergeant Christopher Musa spoke discourteously to § 87(2)(b)

It was undisputed that Lieutenant Bobo took § 87(2)(b) to the ground and officers made discourteous remarks to § 87(2)(b) § 87(2)(g).

§ 87(2)(b) stated (BR 57) that as Lieutenant Bobo approached § 87(2)(b) on the steps, he put his hands near his chest with his elbows bent and said, “Excuse me, sir.” Lieutenant Bobo pushed § 87(2)(b) s arm or back to push him out of his way and into the arms of the other officers. Four officers, two on each side, dragged § 87(2)(b) down by his arms and another officer said, “Stop resisting.” § 87(2)(b) said, “I’m not resisting, § 87(2)(b), I’m an essential worker.” § 87(2)(b) later told § 87(2)(b) that he was tased in the neck at this point, but § 87(2)(b) never felt it, however, he did have a bruise on his neck after the incident. § 87(2)(b) fell onto the ground and scraped his finger. § 87(2)(b) kept his body loose and put his own arms behind his back to show that he was complying. Officers continued to force § 87(2)(b) s arms behind his back. § 87(2)(b) felt officers hitting him in the back. He felt that there were more than two officers hitting him, but he could not see them behind his back. § 87(2)(b) said again, “§ 87(2)(b) I’m an essential worker.” An officer placed his knee behind § 87(2)(b) s neck, said “Fuck your essential job,” and slammed § 87(2)(b) s head onto ground two times. § 87(2)(b) noticed that he was bleeding from around his eye, and it began to swell.

§ 87(2)(b) was handcuffed and needed help getting up. § 87(2)(b) was transported to the 73rd Precinct stationhouse and then to § 87(2)(b) due to bleeding from the head. § 87(2)(b) went to § 87(2)(b) e after he was released from Central Booking.

None of § 87(2)(b) s medical records indicated that he was tased (BR 59, BR 60, and BR 61). Medical records showed that § 87(2)(b) sustained an abrasion to the face.

A photo of § 87(2)(b) s face, taken on May 3, 2020, one day after the incident, showed an abrasion to § 87(2)(b) s left eyebrow (BR 62). Another photo taken that same day shows an abrasion to § 87(2)(b) s neck (BR 63).

§ 87(2)(b) stated (BR 41) that after Lieutenant Bobo lunged toward her, § 87(2)(b) and § 87(2)(b) did not raise their arms or hands. § 87(2)(b) said, “That’s my sister what are you doing?” § 87(2)(b) called IAB. Lieutenant Bobo and three additional officers grabbed § 87(2)(b) and threw him against the cement pillar attached to the steps which resulted in a cut to the head. An officer put a Taser against § 87(2)(b) s neck and § 87(2)(b) fell to the ground.

§ 87(2)(b) ended up going to the hospital and then to Central Booking. § 87(2)(b) stated that § 87(2)(b) did not remember being Tased, but he had a mark on his neck when she saw him again.

§ 87(2)(b) stated (BR 49) that an officer threw § 87(2)(b) to ground, slammed his head into the concrete, and handcuffed him. § 87(2)(b) believed that § 87(2)(b) was tased, but he was not sure because he was facing away from § 87(2)(b).

Lieutenant Bobo stated (BR 43) that when he approached § 87(2)(b) § 87(2)(b) pushed him with two hands to his chest causing him to take a step or two back. Then Lieutenant Bobo and § 87(2)(b) were face to face when Lieutenant Bobo performed a forcible takedown of § 87(2)(b). § 87(2)(b) was resisting being pulled to the ground by pulling in the opposite direction. Officers assisted in taking § 87(2)(b) to the ground but Lieutenant Bobo did not recall who. The additional officers were likely to his left and right. The officers assisted in handcuffing § 87(2)(b). § 87(2)(b) was flailing and moving his arms around. § 87(2)(b) was face down

on the ground. Lieutenant Bobo did not push § 87(2)(b) against a cement pole while taking him to the ground. Lieutenant Bobo did not place his knee behind § 87(2)(b)'s neck, lift his head, and slam it to the ground. Lieutenant Bobo did not see any other officer do this.

§ 87(2)(b) said, "Fuck you, I'm a city worker, you can't do this." Lieutenant Bobo did not respond or issue any verbal commands. Lieutenant Bobo. Lieutenant Bobo never said, "I don't give a fuck who you are, motherfucker." He did not remember hearing any other officer making that statement. Lieutenant Bobo did not say, "Don't ever put your fucking hands on one of us." He did not hear any other officer make that statement. Lieutenant Bobo did not say, "Fuck your essential job," nor did he hear any officer make that statement. Lieutenant Bobo did not use and profanity throughout the course of the incident and he did not remember hearing any other officer using profanity.

Lieutenant Bobo and the officers rolled § 87(2)(b) over and stood him up. Lieutenant Bobo did not observe any injuries on § 87(2)(b). Lieutenant Bobo did not remember seeing any bleeding to § 87(2)(b)'s face. § 87(2)(b) appeared to be intoxicated because he was slurring. Lieutenant Bobo had seen § 87(2)(b) with a clear cup with brown liquid.

Sgt. Musa stated (**BR 50**) that he observed Lieutenant Bobo attempting to arrest § 87(2)(b). § 87(2)(b) Lieutenant Bobo approached the building and § 87(2)(b) pushed him. Then they took § 87(2)(b) into custody. Sgt. Musa did not have independent recollection of how the push took place. Lieutenant Bobo did not give Sgt. Musa any instructions to assist, and Sgt. Musa did not recall instructing any officers to assist. Sgt. Musa, Lieutenant Bobo, and PO Aponte took § 87(2)(b) to the ground. Sgt. Musa extended his arm and reached for § 87(2)(b). He did not know where he made contact and did not know where other officers made contact. He did not remember what § 87(2)(b) was doing with his body. Sgt. Musa took his taser out to subdue § 87(2)(b) however, he holstered it and never charged it. Sgt. Musa never tased § 87(2)(b) however, he stated that it would have been permissible to tase § 87(2)(b) because he pushed Lieutenant Bobo and was struggling with him and PO Aponte. § 87(2)(b) was also resisting arrest.

During his interview, Sgt. Musa's body-worn camera footage (**BR 11; video, BR 32; summary**) was shown from 00:21 seconds to 1:00 minute. This clip did not refresh Sgt. Musa's memory about anything that happened. Sgt. Musa said he could have said, "Never put your fucking hands on one of us," but he did not know. Sgt. Musa did not know who said, "I don't give a fuck who you are motherfucker," but he did not know whether it was his own voice and had no independent recollection of saying that phrase. Sgt. Musa did not recall seeing any officers hitting § 87(2)(b) nor grabbing his head and smashing it into the sidewalk.

PO Aponte stated (**BR 45**) that Lieutenant Bobo approached § 87(2)(b) and was pushed by § 87(2)(b) with one outstretched arm to the chest. PO Aponte did not remember who pushed Lieutenant Bobo and was basing his testimony on his body-worn camera. An arrest was made after the push; however, PO Aponte was not sure whether § 87(2)(b) was arrested. PO Aponte did not remember seeing Sgt. Musa or any officer take out a Taser. PO Aponte did not remember which other officers were on scene. PO Aponte did not remember Lieutenant Bobo or Sgt. Musa making any discourteous remarks to § 87(2)(b). PO Aponte did not remember any officer using profanity during this incident.

§ 87(2)(b)'s arrest (#§ 87(2)(b)) was sealed (**BR 63**).

TRI § 87(2)(b) (**BR 64**) states that officers used a forcible take down on § 87(2)(b) to overcome resistance or aggression and § 87(2)(b) sustained a minor laceration or abrasion because of intentional police action.

The Taser Information sheet for Sgt. Musa's Taser #X13009155 shows that at 20:34:54 the Taser was armed for only 00:01 second (**BR 65**). During his interview, Sgt. Musa explained (**BR 50**) that he was not familiar with this document and that his taser was never deployed.

PO Aponte's body-worn camera footage (**BR 05; video, BR 25; summary**) shows at 4:23 minutes, Lieutenant Bobo approaches § 87(2)(b). As Lieutenant Bobo approaches the steps to § 87(2)(b) § 87(2)(b) gets in front of Lieutenant Bobo so that he is between Lieutenant

Bobo and § 87(2)(b) § 87(2)(b) appears to push Lieutenant Bobo with both arms. At 4:33 minutes, Lieutenant Bobo is shown taking § 87(2)(b) to the ground.

Sgt. Musa's body-worn camera footage (**BR 11**; video, **BR 32**; summary) shows at 00:30 seconds, Lieutenant Bobo approaching § 87(2)(b) on the steps to § 87(2)(b). At 00:35 seconds, Sgt. Musa points his taser in § 87(2)(b)'s direction as Lieutenant Bobo struggles to gain control of § 87(2)(b). Sgt. Musa says, "Yo, Lieuy Lieuy get off, back up, back up." A red laser warning dot briefly appears on Lieutenant Bobo's back then goes away. Lieutenant Bobo continues to struggle with § 87(2)(b) who states, "§ 87(2)(b) I'm an essential worker." An unidentified officer says, "I don't give a fuck who you are. I don't give a fuck who you are motherfucker." § 87(2)(b) goes to the ground and it is unclear which parts of his body make contact with the sidewalk due to the lighting and angle. Sgt. Musa says, "Don't ever put your fucking hands on one of us."

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide procedure 221-01 (**BR 56**) states that force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject's violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

Patrol Guide procedure 221-08 (**BR 66**) states that a Conducted Electrical Weapon, or Taser, should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring other persons present.

Patrol Guide procedure 200-02 (**BR 67**) states that members of service are to render services with courtesy and civility.

In DAO-DCT Case Number 2015-15012 (**BR 68**), a discourteous remark was exonerated due to the dynamic situation in which the officer was still attempting to gain control of the subject, however, a discourteous remark was not permissible when it was made after the subject was placed under arrest and served no legitimate purpose but to belittle the subject.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (K) Force: Police Officer Louis Aponte used physical force against § 87(2)(b)

Allegation (L) Force: Lieutenant Alexander Bobo used physical force against § 87(2)(b)

It was undisputed that § 87(2)(b) was placed into handcuffs.

§ 87(2)(b) stated (BR 41) that when Lieutenant Bobo and officers approached her, an officer grabbed § 87(2)(b) and threw him against the cement pillar that held the railing to the steps and handcuffed him.

§ 87(2)(b) stated (BR 49) that an officer grabbed his arms, handcuffed him, and told him he was going to jail. § 87(2)(b) sustained bruises, cuts, and a sprained wrist. § 87(2)(b) did not seek medical treatment from the officers on scene and did not see a doctor at any point after the incident.

PO Aponte stated (BR 45) that an unknown supervisor ordered him to place § 87(2)(b) in handcuffs. PO Aponte helped with the handcuffing but was not assigned the arrest. PO Aponte did not remember who else assisted in handcuffing § 87(2)(b). There was no difficulty getting § 87(2)(b) into handcuffs and he did not resist. PO Aponte did not recall § 87(2)(b) making any complaints of pain. PO Aponte did not observe any injuries to § 87(2)(b)'s wrists or hands. PO Aponte never twisted § 87(2)(b)'s wrist or hand to get it into the handcuffs and he did not recall any other officer perform this action. PO Aponte did not use force to handcuff § 87(2)(b). PO Aponte did not remember what § 87(2)(b) was arrested for.

Lieutenant Bobo (BR 43) did not have any independent recollection of § 87(2)(b).

PO Aponte's body-worn camera (BR 05; video, BR 25, summary) shows at 4:43 minutes, PO Aponte approaches § 87(2)(b). PO Aponte and Lieutenant Bobo take § 87(2)(b)'s arms and place them behind his back and § 87(2)(b) is handcuffed.

Patrol Guide procedure 221-01 (BR 56) states that force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: The nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to number of MOS, size, age, and condition of subject compared to that of the MOS, subject's violent history, presence of hostile crowd or agitators, and whether the subject is apparently under the influence of stimulants/narcotics.

§ 87(2)(g)

Allegation (M) Abuse of Authority: Officers refused to provide their names to

§ 87(2)(b)

Allegation (N) Abuse of Authority: Officers refused to provide their shield numbers to

§ 87(2)(b)

In the original complaint (BR 48) and during a phone call with the CCRB (BR 79), the anonymous complainant stated that at the end of the incident, she went outside and asked officers for their names and shield numbers, an officer looked at her, went in his vehicle and left without providing his name or shield number.

Lieutenant Bobo (**BR 43**), Sgt. Nocerino (**BR 44**), Sgt. Musa (**BR 50**), PO Fernandez (**BR 46**), and PO Aponte (**BR 45**) consistently stated that they did not witness a female exit § 87(2)(b) and ask officers for names or shield numbers.

No body-worn camera footage captured any female asking officers for names and shield numbers.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**BR 68, BR 69, BR 70, BR 71, and BR 72**).
- Sgt. Nocerino has been a member of service for 16 years and named a subject in 18 additional CCRB complaints and 50 allegations, three of which have been substantiated.
 - 201902270 involved substantiated allegations of failure to provide a RTKA card, a frisk, and refusal to provide shield number. The Board recommended formalized training and the NYPD imposed Instruction.
- Sgt. Musa has been a member of service for 9 years and named a subject in eight additional CCRB complaints and 17 allegations, three of which were substantiated.
 - 201605419 involved substantiated allegations of a frisk and vehicle search. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - 201908128 involved a substantiated allegation of an entry of premises. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
- Lieutenant Bobo has been a member of service for 12 years and named a subject in 31 additional CCRB complaints and 80 allegations, six of which were substantiated.
 - 200915588 involved a substantiated allegation of a stop. The Board recommended Charges and the NYPD imposed Command Discipline B.
 - 201212122 involved substantiated allegations of a frisk and search of person. The

